

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS and STATE BOARD OF ADDICTION COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2017-496 and 2017-501

STIPULATION AND FINAL BOARD ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE
LICENSE TO PRACTICE PROFESSIONAL COUNSELING AND THE
CERTIFICATE TO PRACTICE ADDICTION COUNSELING IN THE STATE OF
COLORADO OF KELLY JEAN KEELER, LICENSE NOS. LPC 12117 AND ACB
6492,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed
Professional Counselor Examiners and State Board of Addiction Counselor
Examiners ("the Boards") and Kelly Jean Keeler ("Respondent") as follows:

1. Respondent is a licensed professional counselor ("LPC"), license
number LPC 12117, and a certified addictions counselor II ("CAC II"), license
number ACB 6492, within the State of Colorado.
2. The Board has jurisdiction over Respondent and the subject matter of
this Stipulation and Final Board Order ("Order") pursuant to the provisions of the
Mental Health Practice Act, § 12-43-101 *et seq.*, C.R.S. ("MHPA").
3. It is the intent of the parties and the purpose of this Order to provide
for a settlement of all matters arising out of case numbers 2017-496 and 2017-501
without the necessity of holding a formal hearing.
4. This Order is a full and final resolution of case numbers 2017-496 and
2017-501. This Order does not resolve any other cases, complaints, or matters,
known or unknown to the Boards or Respondent, as of the effective date of this
Order.
5. Respondent admits the following:

- a. Respondent failed to document in her client notes that she had consulted with her supervisor and/or program director regarding a potential mandatory reporting issue;
- b. Respondent failed to document, anywhere in her client notes, that she called in the potential mandatory reporting issue to the Department of Human Services ("DHS") as a "hypothetical" and was advised that the issue was not something that warranted follow-up; and,
- c. Respondent's mandatory disclosure statement, provided to client M.C., fails to meet the requirements of § 12-43-214(1)(b)(I), C.R.S.

6. By virtue of the facts admitted in paragraph 5 above, the Boards find that Respondent violated § 12-43-222(1)(g)(I), (p), and (u), C.R.S.

ADMONITION

7. On the basis of the findings set forth in paragraphs 5 and 6 above, the Boards hereby admonish Respondent for violation of § 12-43-222(1)(g)(I), (p), and (u), C.R.S. This Order is effective as a Letter of Admonition pursuant to § 12-43-223(3)(d), C.R.S. As part of the admonishment, Respondent agrees to the following terms:

PROBATION

10. Respondent's licenses to practice as an LPC and CAC II in the State of Colorado are hereby placed on probation for one (1) year commencing from the effective date of this Order. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order.

11. The period of probation is tolled during any time that Respondent is not practicing as an LPC and CAC II in the State of Colorado, and such period of probation shall resume at such time as Respondent resumes practicing as an LPC and CAC II in the State of Colorado in accordance with this Order.

12. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as an LPC and CAC II in the State of Colorado and is in full compliance with this Order.

13. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of the probation. Request for termination of probation must be made in writing to the

Boards, and Respondent is responsible for establishing, to the satisfaction of the Boards, that she has satisfied all terms and conditions of probation.

CONTINUING EDUCATION

14. During the period of probation, Respondent must successfully complete 20 hours of Board-approved professional continuing education ("CE") courses in the following areas: professional practice, ethics, record keeping, and mandatory reporting. Respondent shall obtain Board approval of the courses prior to enrollment therein. Upon completion of a course, Respondent shall ensure that a certificate of completion is provided to the Boards.

15. The hours of CE completed pursuant to this Order shall be in addition to, and may not be counted toward, the continuing professional competency requirements set forth in §§ 12-43-605 and 12-43-805, C.R.S.

TERMS AND CONDITIONS

16. Respondent will strictly observe the prohibitions set forth in § 12-43-222, C.R.S., and will ensure that she practices in accordance with the generally accepted standards of practice.

17. All expenses incurred or associated with any requirement necessary to fulfill the terms of this Order shall be the sole responsibility of Respondent.

18. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Boards of the change of address within 30 days of the effective date of such change.

19. Respondent is fully aware of and understands her right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-43-224, C.R.S., and hereby waives those rights. Respondent acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

20. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

21. This Order shall constitute a Board Order for purposes of § 12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to § 12-43-224, C.R.S.

22. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the MHPA and, if proven, may constitute a basis for disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

23. This Order constitutes the entire agreement between Respondent and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

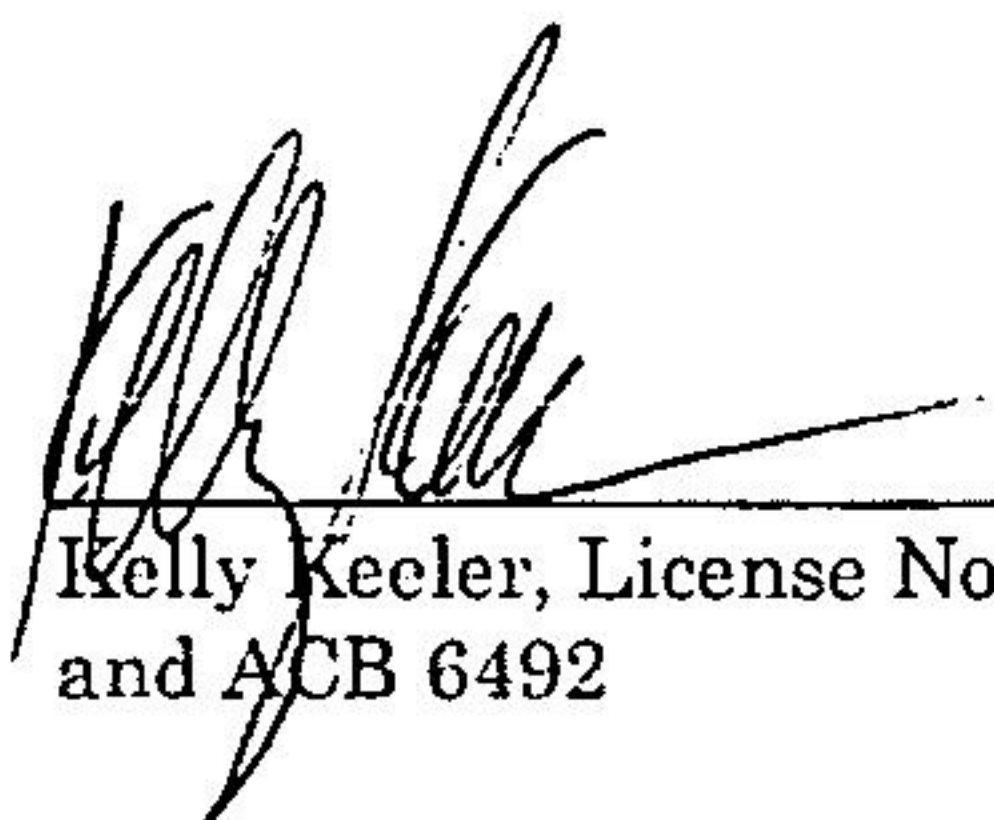
24. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

25. This Order shall be a public record in the custody of the Boards.

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AGREED TO AND ACCEPTED BY:

RESPONDENT



Kelly Keeler, License Nos. LPC 12117
and ACB 6492

*Inter
on*

AGREED TO AND ORDERED BY:

BOARD OF LICENSED
PROFESSIONAL COUNSELOR
EXAMINERS and BOARD OF
ADDICTION COUNSELOR
EXAMINERS



Darcie Magnuson
Program Director

Effective this Date:

23rd January, 2019